

Court No. - 39

Case :- CIVIL MISC REVIEW APPLICATION No. - 454 of 2022

Applicant :- Mukhtar Washeem

Opposite Party :- Uttar Pradesh Power Corporation Limited,
Uttar Pradesh And 3 Others

Counsel for Applicant :- Sandeep Kumar

Counsel for Opposite Party :- Mukesh Kumar Singh

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Vipin Chandra Dixit,J.

No-one is present to press the present application.

Sri Mukesh Kumar Singh learned counsel for the respondent is present.

Put up this matter as fresh on 03.11.2022.

Order Date :- 19.10.2022

Himanshu

Court No. - 39

Case :- CIVIL MISC REVIEW APPLICATION No. - 454 of 2022

Applicant :- Mukhtar Washeem

Opposite Party :- Uttar Pradesh Power Corporation Limited, Uttar Pradesh And 3 Others

Counsel for Applicant :- Sandeep Kumar

Counsel for Opposite Party :- Mukesh Kumar Singh

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Vipin Chandra Dixit,J.

Put up this matter on 14.11.2022 as fresh along with the record of Writ-C No. 28202 of 2022 (Mukhtar Washeem vs. Uttar Pradesh Power Corporation Limited).

Order Date :- 10.11.2022

Brijesh

Court No. - 39

Case :- CIVIL MISC REVIEW APPLICATION No. - 454 of 2022

Applicant :- Mukhtar Washeem

Opposite Party :- Uttar Pradesh Power Corporation Limited, Uttar Pradesh And 3 Others

Counsel for Applicant :- Sandeep Kumar

Counsel for Opposite Party :- Mukesh Kumar Singh

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Vipin Chandra Dixit,J.

As prayed on behalf of the counsel for the review applicant, put up on 05.12.2022 as fresh.

Order Date :- 18.11.2022

Harshita

Court No. - 39

Case :- CIVIL MISC REVIEW APPLICATION No. - 454 of 2022

Applicant :- Mukhtar Washeem

Opposite Party :- Uttar Pradesh Power Corporation Limited, Uttar Pradesh And 3 Others

Counsel for Applicant :- Sandeep Kumar

Counsel for Opposite Party :- Mukesh Kumar Singh

In

Case :- WRIT - C No. - 28202 of 2022

Petitioner :- Mukhtar Washeem

Respondent :- Uttar Pradesh Power Corporation Limited

Counsel for Petitioner :- Sandeep Kumar

Counsel for Respondent :- Krishna Agarawal, Mukesh Kumar Singh

Hon'ble Mrs. Sunita Agarwal, J.

Hon'ble Vipin Chandra Dixit, J.

Sri Mukesh Kumar Singh learned counsel appears for the respondent.

The review of the judgment and order dated 23.9.2022 passed by this Court is being sought on the ground that fact of filing of the application invoking Clause 7.10 of the Electricity Supply Code, 2005 could not be brought before this Court and that the said provision was invoked on account of the pending application before the Executive Engineer invoking Clause 6.5 of the Electricity Supply Code, 2005.

It is then submitted by Sri Amit Saxena assisted by Sri Sandeep Kumar learned counsel for the review applicant that after dismissal of the writ petition vide order dated 3.9.2010 by order dated 14.11.2022 the Consumer Grievances Redressal Forum had rejected the application/representation moved by the petitioner under Clause 7.10 of the Electricity Code, 2005.

It is further argued that the dispute in the present case is with regard to electricity bill on the premise that the demand raised therein is barred by provisions of Section 56(2) of the Electricity Act, 2003 read with Clause 6.5 of the U.P. Electricity Supply Code, 2005. As there is no adjudication at the ends of the respondent, the petitioner cannot be relegated to avail the remedy of appeal under Section 127 of the Electricity Act,

2003.

Taking note of the above fact, we propose to recall the order dated 23.9.2022 with the direction to the Consumer Grievance Redressal Forum to recall its order dated 14.11.2022 of the dismissal of the application/representation moved by the petitioner under Clause 7.10 of the Electricity Code 2005 and decide the matter on merit dealing with the objections raised by the petitioner with regard to implication of Section 56(2) of the Electricity Act, 2003 read with Clause 6.5 of Electricity Supply Code, 2005. The Consumer Grievance Redressal Forum shall decide the matter as expeditiously as possible, preferably within one month from the date of receipt of copy of this order.

The order dated 23.9.2022 is hereby reviewed.

The claim of the petitioner for restoration of electricity connection shall also be considered by the said authority.

Both the review application and writ petition are **disposed of**, accordingly.

Order Date :- 15.12.2022

Harshita